

Kamaiya Labour (Prohibition) Act, 2002

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Kamaiya Labour (Prohibition) Act, 2058

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Amending Acts

1. Republic Strengthening and Some Nepal Laws Amendment Act, 2066 2066.10.7

2. Act to Maintain Gender Equality and End Gender-Based Violence Amending Some Nepal Acts, 2072 2072.6.14

3. Some Nepal Acts Amendment Act, 2072 2072.11.13

Act No. 21 of the year 2058

An Act Made to Make Provision Relating to Kamaiya Labour (Prohibition)

Preamble: Whereas, it is desirable to make necessary provision relating to prohibiting Kamaiya labour, rehabilitating freed Kamaiyas, and improving the living standard of freed Kamaiyas from the perspective of social justice,

Now, therefore, Parliament has enacted this Act in the first year of the reign of His Majesty King Gyanendra Bir Bikram Shah Dev. Chapter-1

Preliminary

1. Short title and commencement: (1) This Act may be called the "Kamaiya Labour (Prohibition) Act, 2058".

(2) This Act shall commence immediately. 2. Definitions: Unless the subject or context otherwise requires, in this Act,?

(a) "Kamaiya labour" means labour or service which, for the reasons set forth below, has to be performed for a creditor without wages or at low wages:?

(1) For repayment of a loan taken by oneself or one's family, or the interest thereon,

(2) For repayment of a loan taken by an ancestor, or the interest thereon,

(3) For repayment of the Kamaiya debt of a Kamaiya labourer for whom one has stood surety before the creditor.

(b) "Kamaiya labourer" means a person performing Kamaiya labour under the name of bhaishwar, gaiwar, bardikar, chekarwar, haruwa, charuwa, hali, gothalo, kamalariya or any other similar name.

(c) "Kamaiya debt" means cash, kind or goods taken by a Kamaiya labourer from a creditor, and this term also includes sauki or other debts.

(d) "Creditor" means a person who provides a loan to a Kamaiya labourer.

(e) "Family" means father, mother, husband, wife, son or daughter, and this term also includes the joint coparceners of a person who is the main working member of the household and is a Kamaiya labourer.

(f) "Freed Kamaiya" means a Kamaiya labourer who has become free pursuant to section 3.

(g) "Committee" means the Freed Kamaiya Rehabilitation and Monitoring Committee formed pursuant to section 8.

(h) "Welfare Officer" means the Welfare Officer referred to in section 10.

(i) "Fund" means the Fund referred to in section 12.

(j) "Agricultural labourer" means a person performing work as specified by the Government of Nepal by publishing a notice in the Nepal Gazette.

(k) "Prescribed" or "as prescribed" means prescribed or as prescribed in the rules made under this Act.

Chapter-2

Provisions Relating to Prohibition of Kamaiya Labour

3. Becoming free from Kamaiya labourer status: A person who, at the time of commencement of this Act, is working as a Kamaiya labourer shall automatically become free from being a Kamaiya labourer after the commencement of this Act. 4. Not to be employed as a Kamaiya labourer: No person shall, after the commencement of this Act, keep or employ any person as a Kamaiya labourer. Chapter-3

Provisions Relating to Kamaiya Debt

5. Kamaiya debt not to be repaid: A Kamaiya labourer shall not be required to repay to the creditor any Kamaiya debt taken from the creditor after the commencement of this Act. 6. Deed or agreement to be void: Notwithstanding anything contained in the prevailing law, any deed or written or unwritten agreement made between the creditor and Kamaiya labourer relating to taking or giving a Kamaiya debt shall automatically become void after the commencement of this Act. 7. Property taken as mortgage or security to be returned: If the creditor has taken any property as mortgage or security when giving a Kamaiya debt to the Kamaiya labourer, such property taken as mortgage or security shall be returned to the concerned person within three months from the date of commencement of this Act. Chapter-4

Formation of Committee and Its Functions, Duties and Powers

8.

Formation of Committee: (1) For the purpose of working at the district level relating to the rehabilitation of freed Kamaiyas, there shall be a Freed Kamaiya Rehabilitation and Monitoring Committee in the district prescribed by the Government of Nepal. (2) The Committee shall be formed as follows: (a) Amended by the Some Nepal Acts Amendment Act, 2072. Chief of the District Coordination Committee - Chairperson (b) Chief of the District Police Office - Member (c) Chief of the District Education Office - Member (d) Officer of the District Administration Office - Member (e) Chief of the District Forest Office - Member (f) Chief of the District Land Reform Office - Member (g) In a district where there is a Labour Office, the Chief of that Office - Member (h) Chief of the District Agricultural Development Office - Member (i) One from among the Chiefs of banking offices at the district level - Member (j) One from among farmer-related associations and organizations at the district level - Member (k) Up to three from among trade union-related associations and

organizations - Member (l) One from among non-governmental organizations working on matters relating to Kamaiya labourers - Member (m) One from among freed Kamaiyas - Member (n) Welfare Officer - Member Secretary (3) The members under clauses (i), (j), (k), (l) and (m) of sub-section (2) shall be nominated by the Chairperson of the Committee, and their term of office shall be three years. (4) The procedure relating to meetings of the Committee shall be as determined by the Committee itself. 9. Functions, duties and powers of the Committee: The functions, duties and powers of the Committee shall be as follows: (a) To cause the records of freed Kamaiyas to be updated, (b) To make necessary arrangements for the rehabilitation of freed Kamaiyas, (c) To implement programmes approved by the Government of Nepal for the rehabilitation of freed Kamaiyas, (d) To monitor whether any person is employing any person as a Kamaiya labourer, (e) To recommend to the Government of Nepal, banks or financial institutions to make available loan amounts necessary for carrying out income-generating businesses for freed Kamaiyas, (f) To coordinate with various bodies or associations and organizations regarding housing, education, employment-oriented training or skill development for freed Kamaiyas, (g) To do necessary work relating to the rights and interests of freed Kamaiyas, (h) To do other work as prescribed. Chapter-5 Welfare Officer and Other Provisions 10.

Welfare Officer: The Government of Nepal shall designate an officer-level employee of the Government of Nepal to work as a Welfare Officer for the purpose of doing necessary work relating to the rights and interests of freed Kamaiyas. 11. Functions, duties and powers of the Welfare Officer: The functions, duties and powers of the Welfare Officer shall be as follows: (a) To prepare records of freed Kamaiyas, (b) To do work directed and assigned by the Committee relating to the rights and interests of freed Kamaiyas, (c) To implement or cause to implement decisions made by the Committee, (d) To do other work as prescribed. 12. Fund: (1) For the purpose of doing necessary work relating to the rights and interests of freed Kamaiyas, there shall be a Fund, and the Fund shall consist of the following amounts: (a) Amount received as grant from the Government of Nepal, (b) Amount received from foreign individuals, governments or associations and organizations through the Government of Nepal, (c) Amount received from other sources. (2) The amount deposited in the Fund shall be deposited by opening an account in any bank. (3) The operation of the Fund shall be carried out by the Welfare Officer under the direction of the Committee, following the procedure prescribed by the Government of Nepal. 13. Minimum wage rate may be fixed: (1) The Government of Nepal shall, by publishing a notice in the Nepal Gazette, fix the minimum wage rate for agricultural labourers. (2) No person shall employ an agricultural labourer without paying wages, or by paying wages lower than the minimum wage rate fixed under sub-section (1). 14. Arrangement for residence and employment: The Government of Nepal shall make arrangements for residence, employment and income generation for freed Kamaiyas as prescribed. Chapter-6 Complaint, Penalty and Appeal 15. Complaint may be made: (1) If any person does any act contrary to this Act, the person aggrieved by such act, or a member of his or her family, or an office-bearer of an association, organization or local body may make a written complaint or oral information to the Adjudicating Officer, attaching as far as possible the evidence in his or her possession. (2) If any person makes oral information under sub-section (1), the Adjudicating Officer shall cause such matter to be prepared in the form of a complaint and obtain the signature of the person giving the information. (3) Notwithstanding anything contained in the prevailing law, the person making a complaint under sub-section (1) shall not be required to furnish personal bail for release pending trial. 16.

Penalty: (1) If any person employs any person as a Kamaiya labourer contrary to section 4, the Adjudicating Officer shall fine such person from fifteen thousand rupees to twenty-five thousand rupees and also order the person so employing to pay to the working person double the amount of the minimum wage rate fixed under this Act for each day of such employment. (2) If any person fails to return property taken as mortgage or security under section 7, the Adjudicating Officer shall fine such person from ten thousand rupees to fifteen

thousand rupees and cause such property to be returned to the concerned person. (3) If any person employs any person without paying wages or by paying less than the minimum wage under section 13, the Adjudicating Officer shall fine such person from one thousand rupees to three thousand rupees and also order the person so employing to pay to the working person double the amount of the minimum wage rate fixed under this Act for each day of such employment. (4) If any person obstructs or opposes any person in the course of inquiry into any act or action contrary to this Act, the Adjudicating Officer shall fine such person from three thousand rupees to ten thousand rupees. (5) If any person does any act contrary to this Act or the rules made under this Act other than those mentioned in sub-sections (1), (2), (3) and (4), the Adjudicating Officer shall fine such person from one thousand rupees to three thousand rupees. (6) If any person knowingly or with intent to cause harm to any person makes a false complaint, the Adjudicating Officer shall fine such person from one thousand rupees to three thousand rupees. (7) If the person doing an act under sub-sections (1), (2), (3), (4), (5) and (6) holds a public office of profit, or if a person who has already been punished for an act contrary to this Act again commits the same act, the Adjudicating Officer shall impose double the penalty mentioned in that sub-section on such person. 17. Adjudicating Officer: The authority to adjudicate cases under this Act shall be with the Chief District Officer of the concerned district. 18. Appeal: A person dissatisfied with the decision made by the Adjudicating Officer under this Act may file an appeal in the concerned Amended by the Some Nepal Acts Amendment Act, 2072. District Court within thirty-five days. Chapter-7 Miscellaneous 19. Procedure of case: In conducting proceedings and disposing of cases under this Act, the Adjudicating Officer shall follow the procedure under the Special Court Act, 2059. 20.

Burden of proof: If a question arises as to whether any deed or agreement was not made for the purpose of giving a Kamaiya debt, the burden of proving that shall lie on the person asserting it. 21. Report to be submitted: (1) The concerned Amended by the Some Nepal Acts Amendment Act, 2072. Rural Municipality or Municipality shall inspect whether any person within its area is employing any person contrary to this Act and shall submit a report with its opinion to the Committee at least once every six months. (2) The Welfare Officer shall submit a report of the work done by the Committee during the year to the Government of Nepal. 22. Government of Nepal may give direction: The Government of Nepal may give necessary directions to the Committee and the Welfare Officer for the rehabilitation of freed Kamaiyas, and it shall be the duty of the Committee and the Welfare Officer to comply with such directions. 23. Power to make rules: The Government of Nepal may make necessary rules for the purpose of implementing the objectives of this Act.